

where by the death of the new *cestui que vie* in the lifetime of the tenant for life no benefit from the renewal accrues either to the tenant for life or to the remainderman. Nor does it appear to have been distinctly perceived by the Court that the renewal of leaseholds for lives being essentially matter of *speculation*, it is impossible to regulate the contribution of either tenant for life or remainderman according to the *value* of his actual enjoyment, without *e converso* making the remainderman or the tenant for life take upon himself the risk of the renewal proving profitable or unprofitable in its ultimate results; and further, that in order to make each party bear the burthen of the renewal in the *proportion* of his actual enjoyment, it would be necessary to await the death not merely of the tenant for life but also of the *cestuis que vie*, a course which would be extremely inconvenient, and, it is conceived, contrary to the general practice of the Court.

In *Harris v. Harris* (*b*), copyholds held for three *lives*, were settled on A. for life with remainders over, and two of the *cestuis que vie* having died, A. put in two new lives at his own expense. A. died in the lifetime of the original *cestuis que vie*, so that A. in event had no benefit from the renewal, and the whole fine was ordered to be repaid to A.'s personal representative. But it might happen that the two new lives would also die in the lifetime of the original *cestuis que vie*, and then the remaindermen also would have no benefit from the renewal. The Court, therefore, must have assumed that the speculative gain or loss was to fall on the remaindermen.

10. **Tenant for life regarded as a trustee.** — Where the legal estate of renewable leaseholds is devised without the interposition of a trustee, but the testator at the same time directs, either expressly or by implication, that the leases shall be renewed, the tenant for life is then himself a trustee (*c*), and as such is compellable to apply for renewals (*d*), but ought before applying for a renewal to consult the remainderman (*e*).

(*b*) *Harris v. Harris* (No. 3), 32 Beav. 333.

(*c*) *White v. White*, 5 Ves. 555.

(*d*) *Lock v. Lock*, 2 Vern. 606; and see *White v. White*, 4 Ves. 24.

(*e*) *White v. White*, 5 Ves. 555.